

June 5, 2026
Dept. 9
Tentative Rulings

13.	25CV2653	AMERICAN EXPRESS NATIONAL BANK VS. ALEXI TYLOR-BOARMAN
Motion to Quash		

Defendant moves to quash service based on defective service pursuant to CCP §§413.10-413-417. Defendant presents declarations that the service was made to a person not authorized to receive service who is not a resident of the same household. Defendant also notes the proof of service itself would support her declarations as the description of the individual who was served is not accurate when compared to evidence in her exhibits as service was purported to be on herself and she has included her driver's license. Defendant is neither the same race as the description nor does she match even approximately the height of the description.

No opposition was filed in response to the motion.

As Defendant has rebutted the presumption that service was proper based on the proof of service from the licensed process server and no response or evidence has been filed in response, the motion is granted.

TENTATIVE RULING #13: MOTION TO QUASH SERVICE OF SUMMONS IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.